

OFFICE OF THE SECRETARY

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October 16, 2019

The Honorable David A. Thompson
Judge of the Superior Court
County of Orange
8141 13th Street
Westminster, CA 92683

Re: Rachael Scarlett Mullenix
CDCR No: X34327
Case No: 06WF2607
Date of Sentence: October 10, 2008

Dear Honorable David A. Thompson:

The purpose of this letter is to provide the court with the authority to resentence inmate Rachael Mullenix, X34327 pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

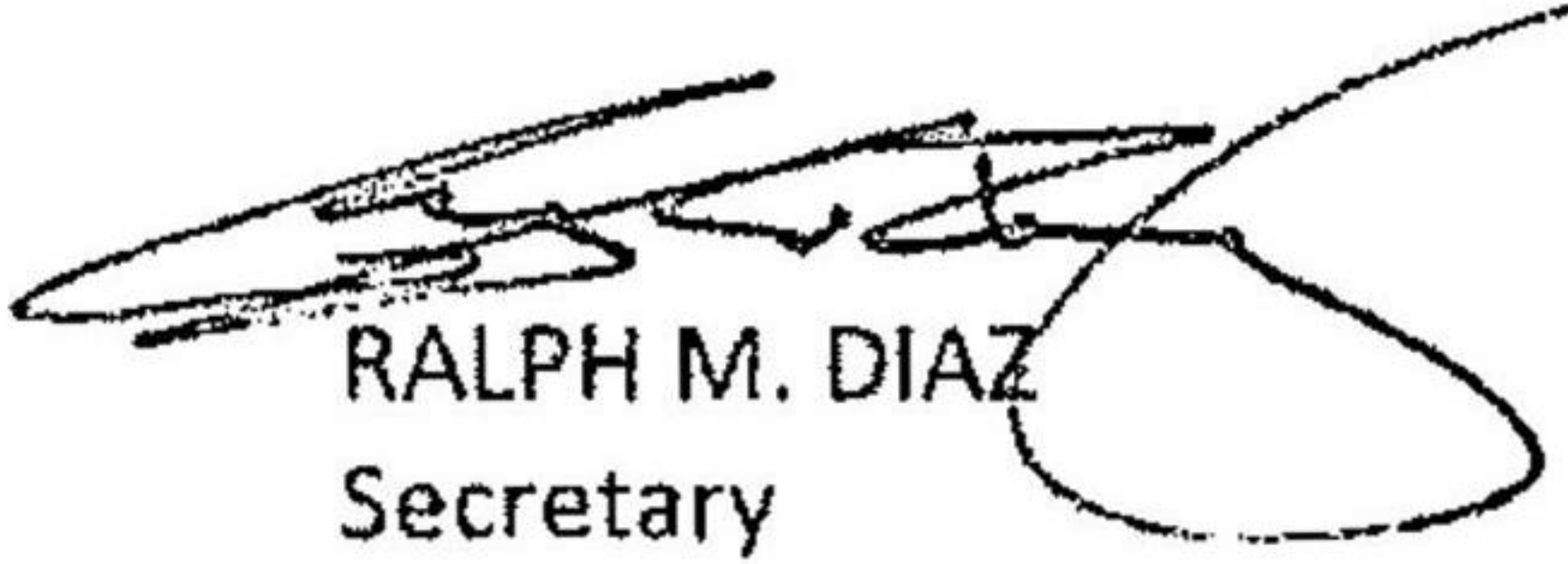
Inmate Mullenix has remained drug free and disciplinary free throughout her entire incarceration. A review of Mullenix's file reveals she has participated in a variety of Self-Help Groups, seminars and workshops, and on many occasions has served as a certified trainer and facilitator. Mullenix has acquired marketable job skills during her incarceration, most notably California State Certification as Certified Drug and Alcohol Counselor. Mullenix is currently serving the inmate population at Central California Women's Facility (CCWF) as a Certified Offender Mentor. Mullenix has also worked as a Re-entry Certified Mentor, Substance Use Disorder Treatment Peer Mentor and has completed Vocational Office Services and

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Computer Literacy Programs, Service Dog Training Program, Voluntary College Courses, various Criminal and Addictive Thinking Groups, Substance Abuse Recovery Support Groups, Victim Awareness/Impact and Reentry and Restorative Justice Programs/Groups. As part of the CCWF Comfort Care Program, she continues to assist inmate Hospice patients by keeping vigil with them during their end of life stage. She has earned numerous Laudatory Chrono's from various staff and volunteers. Mullenix has made several rehabilitative efforts to better herself, her community, and her commitment to positive change is evident and will assist her in a successful transition back into society.

Having reviewed the enclosed documentation it appears that inmate Mullenix's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that she be resentenced.

Sincerely,



RALPH M. DIAZ
Secretary

Enclosures:
Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Honorable Kirk H. Nakamura, Presiding Judge
Orange County District Attorney's Office
Orange County Public Defender's Office